**London Borough of Camden and London Borough of Camden Electoral Registration Officer**

**Memorandum of Understanding For the purpose of data sharing Between the Council Housing Benefits and the Electoral Registration Officer**

The London Borough of Camden Electoral Registration Officer is legally a different Data Controller to the London Borough of Camden but is employed by the same organisation. This Memorandum is non-binding but constitutes a written agreement setting out the intentions of both data controllers to further the lawful purpose described below, aid appropriate information sharing, and safeguard the integrity and confidentiality of the data concerned. In the circumstances both data controllers agree that due to the close and intertwined nature of the relationships and processing, that a formal Data Sharing Agreement is disproportionate and that a MoU will suffice.

This Memorandum of Understanding sets out the respective roles of the parties and the conditions under which the data sharing is permitted. It is intended to meet the requirements of regulation 35A (3) Representation of the People (England & Wales) Regulations 2001 which requires that a disclosure under that provision may be made only in accordance with a written agreement between the authority and the registration officer regulating the processing of the information, including its transfer, storage, destruction and security.

Regulation 35A provides that the council permitted to disclose to the registration officer, for certain registration purposes, information contained in records held by the council. These are the purposes set out in paragraph 1A of Schedule 2 to the 1983 Act, except for the purpose of verifying information related to a person named in a relevant absent voting application. Paragraph 1A(1) of Schedule 2 to the Representation of the People 1983 Act enables provision to be made authorising or requiring a person to disclose information to another person for the purpose of assisting a registration officer

(1) to verify information relating to a person who is registered or who is named in a registration application.
(2) to ascertain the names and addresses of people who are not registered but who are entitled to be registered; or
(3) to identify those people who are registered but who are not entitled to be registered.

It is agreed that the Electoral Registration Officer requires the personal data, detailed below, held by Camden Benefits to properly undertake their statutory duties.

The Electoral Registration Officer confirms that the information requested comes within the scope of their legal powers in Regulation 35 (1) of the Representation of the People (England & Wales) Regulations 2001 which authorises a registration officer to inspect, for the purpose of their registration duties, records kept in any form by Camden.

The data is being accessed to allow the ERO to:

- maintain and manage the register of electors (including the public record of electors)
- meet any statutory requirements of the registration officer not listed above and to administer and enforce rules and regulations relating to electoral registration.
- To prevent and detect crime, including undertaking local and national fraud initiatives.

The personal data will include:

- Name
- Current address

- Previous address (where recorded or where applicable)
- Date of Birth
- National Insurance Number
- Nationality

The data will be provided to the Electoral Registration Officer in the following ways:

- Case by case checks against records held in the Civica OpenRevenues system.
- Data mining and matching exercises of the data recorded locally on Camden's Civica OpenRevenues system, used to process Housing Benefit and local Council Tax Support scheme, to ensure the register of electors can be checked against validated data in the Councils possession.

**Data Transfer**

Camden will produce a series of extract, transfer, and load packages to produce full extracts of each business system using the Camden Residents Index (our Master Data Management system which holds master data from several key business systems) reporting database and transform it into a .csv flat file in the format expected by the ERO system. This will allow Electoral Service to request us to run ad-hoc extracts so they can run checks using those extracts. The extracts will be deposited on our secure MDM Staging server in a specific folder which we will give access to members of the Electoral Services team who will run the checks in the ERO system using the .csv flat files.

**Data Storage**

Data will be stored on the ERO system Democracy Counts .

**Purpose Limitation**

Electoral registration staff with direct access to the Civica system for case-by-case checking are not permitted by law to use Housing Benefit data for processing regarding relevant absent voting application as defined in paragraph 1A(7)(a)(i) of Schedule 2 to the 1983 Act. At present this states the following but the provisions should be checked from time to time to ensure they are correct:

(a) "relevant absent voting application" means—
(i) an application (including a partially completed application) under paragraph 3, 4 or 6 of Schedule 4 to the Representation of the People Act 2000, other than an application in relation to a local government election, or local government elections, in Scotland or Wales, or
(ii) an application (including a partially completed application) under section 6, 7 or 8 of the Representation of the People Act 1985;

As system access can only be granted or not granted and a purpose limitation for access is not technically possible, this purpose limitation cannot be controlled by the system. Therefore the ERO warrants that they have, will record and will maintain appropriate organisational measures to ensure that ERO staff do not extract or use any Housing Benefit data for absent voters processing and which shall include awareness and training on this obligation.

**Retention and Deletion**

The data files received will be destroyed once entered into Democracy Counts. The statutory process of the Annual Canvass will check the information held on the register of electors and any potential electors who are identified as no longer being at the property will be archived in the EMS.

**Information security** is provided by the council's Information Security Team and DDS service, and will be to the same standards as for other council assets. Anyone accessing the data on a case-by-case basis or from the data matching will have has the Baseline Personnel Security Standard check prior to any access to data directly or indirectly to comply with the DWP MoU on direct and indirect access to DWP data. All those who will handle the disclosed data are bound by the employee code of conduct, have undergone appropriate employee checks as necessary for the role, will only use the information for purposes of their role and no other, will not share the information gained with other services or agencies (save where required to do so by law e.g. safeguarding duties, by court order or with the courts or as part of legal proceedings ). Breach of these conditions may result in disciplinary action for breach of the code of conduct.

Agreed:

[redacted]

Name Mark Stewart

Position Head of Council Tax, Business Rates and Benefits

Date: 28 February 2024

Agreed: [redacted]

Name: Jeanette Pegler

Position: Elections Manager

Date: 28/02/24